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File No.: EXP202302170

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On June 16, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against BORSA MEDIC, S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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Procedure No.: EXP202302170 (PS/00089/2023)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: On 01/14/23, Mr. A.A.A. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection. The complaint was directed against the entity BORSA MEDIC, S.L. with CIF: B01770437 (hereinafter, the respondent), for the alleged violation of data protection regulations: Regulation (EU) 2016/679 of the European Parliament and of the Council, of 04/27/16, regarding the Protection of Natural Persons with regard to the Processing of Personal Data and the Free Movement of such Data (GDPR), Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD), and Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

The complainant states that, after requesting the deletion of his personal data from the respondent in March 2022 and despite the favorable resolution of the Agency in C/ Jorge Juan, 6

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PD/00186/2022, of October 2022, urging the respondent to respond to the deletion request made by the complainant, he received a new commercial WhatsApp message on 01/02/23.

Along with the complaint, he submitted a screenshot of the received message, indicating the date of receipt and the sending line ***PHONE.1.

SECOND: On 02/23/23, the Director of the Spanish Agency for Data Protection issued an agreement admitting the processing of the complaint filed, in accordance with Article 65 of the LPDGDD, upon appreciating possible rational indications of a violation of the rules within the scope of the competencies of the Spanish Agency for Data Protection.

THIRD: As background to the present complaint, there is, dated 04/18/22, a previous complaint from the complainant against BORSA MEDIC, S.L., for not having duly addressed his request to exercise rights established in the GDPR, as he exercised the right to deletion against the respondent, without his request having received the legally established response.

The complainant provided various documentation related to the complaint at that time, leading to the opening of this Agency's file PD/00186/2022 for these facts, in whose resolution, notified to the respondent on 10/28/22, he was required to, within ten business days following the notification of this resolution, send to the complainant a certification by which the right to deletion exercised was addressed or was denied with justification indicating the reasons why the request could not be attended to, in accordance with the provisions established in the body of this resolution.

He was also required to communicate to this Agency the actions taken as a result of file PD/00186/2022 within the same period and that non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned, in accordance with Article 58.2 of the GDPR.

The respondent has not demonstrated, regarding the indicated resolution, that it has responded to the

request to exercise rights presented by the complainant. It is also not recorded in this Agency that it has notified any action in the indicated sense.

LEGAL GROUNDS

I-

Competence

- Regarding the sending of commercial communications:

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this Sanctioning Procedure, in accordance with the provisions of Article 43.1, second paragraph, of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

- Regarding the requirement made in the resolution of file PS/000186/22:

The Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure, by virtue of the powers that Article 58.2 of the GDPR recognizes to each Control Authority and as established in Articles 47, 64.2, and 68.1 of the LOPDGDD.

II.-1

Regarding the non-compliance with the resolution in PD/00186/2022:

As background to the present complaint, there is, dated 04/18/22, a previous complaint from the complainant against BORSA MEDIC, S.L., for not having duly addressed his request to exercise rights established in the GDPR, as he exercised the right to deletion against the respondent, without his request having received the legally established response.

The complainant provided various documentation related to the complaint at that time, leading to the opening of this Agency's file PD/00186/2022 for these facts, in whose resolution it was required of the respondent to, within the C/ Jorge Juan, 6

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Within ten working days following the notification of this resolution, a certification shall be sent to the claimant party indicating whether the right of suppression exercised was attended to or was denied with justification, specifying the reasons why the request could not be granted, in accordance with the provisions established in the body of this resolution.

It was also required that the actions taken as a result of file PD/00186/2022 be communicated to this Agency within the same timeframe, and that non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the RGD.

The entity being claimed against has not demonstrated, regarding the indicated resolution, that it has responded to the request for the exercise of rights presented by the claimant party. It is also not recorded in this Agency that any action has been notified in the indicated sense.

II.-2

Unfulfilled Obligation

In accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the entity being claimed against has failed to comply with the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Facts" section are deemed to constitute an infringement, attributable to the entity being claimed against, for violation of Article 58.2.c) of the RGD, which states the following:

2. Each supervisory authority shall have all of the following corrective powers indicated below: (...)

c) to order the controller or processor to comply with the requests for the exercise of the data subject's rights under this Regulation;

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Classification and Qualification of the Infringement

This infringement is classified under Article 83.6 of the RGPD, which stipulates the following:

Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be sanctioned in accordance with paragraph 2 of this article with administrative fines of up to 20,000,000 EUR or, in the case of an enterprise, an amount equivalent to a maximum of 4% of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679.”

Graduation of the Sanction

The determination of the sanction to be imposed in this case requires observing the provisions of Article 83.2 of the RGPD, which establishes that:

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures contemplated in Article 58, paragraph 2, letters a) to h) and j).

In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account: a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose

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of the processing operation in question as well as the number of affected parties and the level of damages they have suffered; b) the intentionality or negligence in the infringement; c) any measures taken by the data controller or processor to mitigate the damages suffered by the affected parties; d) the degree of responsibility of the data controller or processor, taking into account the technical or organizational measures they have applied pursuant to Articles 25 and 32; e) any previous infringement committed by the data controller or processor; f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement; g) the categories of personal data affected by the infringement; h) how the supervisory authority became aware of the infringement, in particular whether the data controller or processor notified the infringement and, if so, to what extent; i) when the measures indicated in Article 58, paragraph 2, have been previously ordered against the data controller or processor in relation to the same matter, compliance with such measures; j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as financial benefits obtained or losses avoided, directly or indirectly, through the infringement.”

Within this section, the LOPDGDD provides in its Article 76, titled “Sanctions and corrective measures”:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account: a) The ongoing nature of the infringement. b) The connection of the infringer's activity with the processing of personal data. c) The benefits obtained as a result of the commission of the infringement. d) The possibility that the conduct of the affected party may have induced the commission of the infringement. e) The existence of a merger by absorption after the

commission of the infringement, which cannot be attributed to the absorbing entity. f) The impact on the rights of minors. g) Having, when not mandatory, a data protection officer. h) The voluntary submission by the data controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any affected party.

3. It will be possible, complementarily or alternatively, to adopt, when appropriate, the remaining corrective measures referred to in Article 83.2 of Regulation (EU) 2016/679.”

According to the transcribed provisions, and without prejudice to the outcome of the procedure's instruction, for the purpose of determining the amount of the fine to be imposed on the entity being claimed, an initial assessment considers the following factors to be present in this case:

- The intentionality or negligence of the infringement by the entity (paragraph b), based on the fact that it was aware of the resolution of file PD/00186/2022 from the date of its notification on 28/10/22, where it was summoned to send the claimant a certification within ten working days following the notification of the resolution, addressing the right of erasure exercised or denying it with justification indicating the reasons why the request could not be met, and to inform this Agency of its actions, and despite this, it not only failed to fulfill the imposed obligation but also sent a new advertising message to the claimant two months later, on 02/01/23.

It is considered particularly important to recall at this point the SAN of October 17, 2007 (rec. 63/2006), which states that:

“...the Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, special consideration must be given to the professionalism or lack thereof of the subject, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted upon the rigor and exquisite care to comply with the legal provisions in this regard.”

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Therefore, if we adhere to the jurisprudence of the Supreme Court, we could even consider this section as a qualified aggravating factor, given the lack of due diligence in this case regarding the management of personal data.

The balance of the circumstances considered, with respect to the infringement committed, by violating the provisions of Article 58.2.c) of the GDPR, allows for an initial sanction of 5,000 euros (five thousand euros).

II.-5

Compliance with the Measures

If the infringement is confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to align their actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 c) of the GDPR, according to which each supervisory authority may "order the controller or processor to respond to requests for the exercise of the rights of the data subject under this Regulation."

In such a case, in the resolution that is adopted, this Agency may order the responsible party to notify the Agency within a specified period of the adoption of the necessary measures arising from the non-compliance with the resolution of procedure PD/00186/2022.

It is warned that failure to comply with the possible order to adopt measures imposed by this body in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Article 83.6, which could lead to the opening of further administrative sanctioning proceedings.

III.-1

Regarding the sending of advertising messages after having previously opposed it:

The complainant states that, after requesting the deletion of their personal data from the respondent in

March 2022 and despite the favorable resolution of the Agency in PD/00186/2022, dated October 2022, urging the respondent to respond to the deletion request made by the complainant, they received a new commercial WhatsApp message on 02/01/23.

Along with the complaint document, they provide a screenshot of the received message, showing the date of receipt and the sending line ***PHONE.1.

III.-2

Classification of the possible infringement committed

Article 21 of the LSSI states the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not been previously requested or expressly authorized by the recipients is prohibited.

2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of their own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

III.-3

Proposal for Sanction

Therefore, in accordance with the evidence available at this time, and without prejudice to what results from the instruction, the facts presented could constitute a violation of Article 21 of the LSSI, by the respondent sending an advertising message to the complainant after they opposed it.

The aforementioned infringement is classified as "minor" in Article 38.4.d) of said regulation, which qualifies as such,

“The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and do not constitute a serious infringement.”

According to the provisions of Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to 30,000 €.

In accordance with the indicated provisions, and without prejudice to what results from the instruction of the procedure, for the purpose of determining the amount of the sanction to be imposed in this case, it is considered appropriate to graduate the sanction to be imposed according to the following aggravating criteria established in Article 40 of the LSSI:

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Section b): Duration of time during which the infringement has been committed, considering that the respondent submitted the first complaint regarding the received advertising messages on 18/04/22 and that on 02/01/23 they received a new advertising message.

In accordance with these criteria, it is deemed appropriate to impose an initial sanction of 5,000 euros (five thousand euros) for the infringement of Article 21 of the LSSI, regarding the sending of advertising emails after opposing the receipt of electronic communications of this type.

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Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,

IT IS AGREED:

TO INITIATE: SANCTIONING PROCEDURE against the entity, BORSA MEDIC, S.L. with CIF: B01770437, for the following infringements:

- Infringement of Article 58.2.c) of the GDPR for failing to comply with the requirements of this Agency by ordering it to address the request for the exercise of the rights of the data subject regarding their personal data.

- Infringement of Article 21 of the LSSI for sending commercial communications to the complainant after they exercised their right to object to receiving such messages.

TO APPOINT: as Instructor Mr. B.B.B., and Secretary, if applicable, Ms. C.C.C., indicating that either of them may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

TO INCORPORATE: into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, the documents obtained and generated by the General Subdirectorate of Data Inspection during the investigation phase, all of which are part of this administrative file.

THAT: for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be:

- 5,000 euros (five thousand euros), for the infringement of Article 58.2.c) of the GDPR.

- 5,000 euros (five thousand euros), for the infringement of Article 21 LSSI.

The total sanction that may correspond would be 10,000 euros (ten thousand euros).

TO NOTIFY: this agreement to initiate the sanctioning file to the entity, BORSA MEDIC, S.L. with CIF: B01770437, granting it a hearing period of ten working days to submit allegations and present any evidence it deems appropriate.

If no allegations are made within the stipulated period regarding this initiation agreement, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, if the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, resolving the procedure with the imposition of this sanction.

Similarly, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of the amount, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, and its payment will imply the termination of the procedure.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the initiation of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 6,000 euros (six thousand euros).

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In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or waiver of any action or administrative appeal against the sanction.

If it is decided to proceed with the voluntary payment of any of the amounts indicated above, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at Banco CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

Furthermore, the proof of payment must be sent to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement or, if applicable, from the draft initiation agreement. Once this period has elapsed, it will expire, and consequently, the file will be archived; in accordance with the provisions of Article 64 of the

LOPDGDD.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

Mar España Martí

Director of the Spanish Agency for Data Protection.

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SECOND: On July 11, 2023, the respondent party proceeded to pay the sanction in the amount of 6,000 euros, making use of the two reductions provided for in the aforementioned initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the initiation of the procedure, entails the waiver of any action or appeal in the administrative route against the sanction.

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administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

FOURTH: The previously transcribed Initiation Agreement indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified period...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the provisions of article 43.1 of Law 34/2002, of July 11, on information society services and electronic commerce (hereinafter LSSI), the powers granted by article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) to each supervisory authority, and as established in articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Data Protection Agency is competent to initiate and resolve this procedure.

Furthermore, article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Data Protection Agency shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, insofar as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Finally, the fourth additional provision "Procedure in relation to the powers attributed to the Spanish Data Protection Agency by other laws" establishes that: "The provisions of Title VIII and its implementing rules shall apply to the procedures that the Spanish Data Protection Agency must process in the exercise of the powers attributed to it by other laws."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

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“1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely pecuniary or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely pecuniary, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation.”

In accordance with the above,

the Director of the Spanish Data Protection Agency RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202302170, in accordance with the provisions of article 85 of the LPACAP.

SECOND: TO ORDER BORSA MEDIC, S.L. to notify the Agency within one month of the adoption of the measures described in the legal grounds of the Initiation Agreement transcribed in this resolution.

THIRD: TO NOTIFY this resolution to BORSA MEDIC, S.L.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by art. 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

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